

SHARE SALE AND PURCHASE AGREEMENT

AMONG

----- (Company Name), a company registered under the Companies Act, 2013, with the registered office -----, duly represented by its director ----- (hereinafter referred to as the "Company");

AND

----- (Name of seller), residing at -----, hereinafter referred to as the "Seller" (which expression shall, unless repugnant to the context or meaning thereof, include his/her heirs, legal representatives, executors, administrators and permitted assigns)

AND

----- (Name of Purchaser), residing at ----- hereinafter referred to as the "Purchaser" (which expression shall, unless repugnant to the context or meaning thereof, include his/her heirs, legal representatives, executors, administrators and permitted assigns);

The Seller and Purchaser and Company are collectively referred to as the "Parties" and individually as "Party".

1. DEFINITIONS

1.1 "**Agreement**" means this Share Sale and Purchase Agreement.

1.2 "**Authorization**" means any consent, registration, filing agreement, certificate, licence, approval, permit, authority or exemption from, by or with, any authority and all corporate, creditors and shareholders approvals or consent.

1.3 "**Act**" means the Companies Act, 2013 and any amendments, modifications or re-enactments thereof.

1.4 "**Business**" means the business of the Company as specified in the Company's Articles.

1.5 "**Completion**" means the process of completing the sale and purchase of the Shares in accordance with the terms and conditions of this Agreement.

1.6 "**Completion Date**" means the date by which all the requirement for completion have been fulfilled.

1.7 "**Purchase Price**" means the total sum to be paid by the Purchaser in exchange for the Shares.

1.8 "**Shares**" means Equity shares sold to the Purchaser pursuant to the terms of this Agreement.

1.9 "**Transaction**" means the purchase of the Shares by the Purchaser.

2. SALE AND PURCHASE OF SHARES

2.1 Subject to the terms of this Agreement, the Seller hereby agrees to sell ---Equity shares of face value of Rs. --- /- per share of -----, a private limited liability company incorporated under the Indian Companies Act, 2013 to the Buyer.

2.2 The Seller undertakes that the Purchaser purchases the Shares free from all Encumbrances and with all rights, titles and beneficial interest attaching or accruing on the Shares, including any dividend distributions shall unconditionally become the property of the purchaser from the Completion Date.

3. THE PURCHASE CONSIDERATION

3.1 The aggregate consideration for the Sale Shares shall be INR _____ (Indian Rupees _____ only).

3.2 The Purchaser shall pay the Purchase Consideration on or before the Completion Date through banking channels.

3.3 Upon receipt of the Purchase Consideration, the Seller shall execute all documents necessary to affect the transfer of the Sale Shares.

4. CONDITIONS PRECEDENT

The completion of this Agreement and the purchase of the Shares by the Purchaser is conditional upon the fulfilment of the following:

- (i) this Agreement and any other agreement entered into by the Parties in connection with the share sale and purchase have been duly executed by all the Parties;
- (ii) the Warranties and representations are true and correct.

5. COMPLETION

5.1 The sale and purchase shall be completed when:

- a) The Seller shall deliver duly executed share transfer forms and share certificates;
- b) The Purchaser shall pay the Purchase Consideration;
- c) The Company shall record the transfer in its Register of Members;
- d) The Company shall issue new share certificate(s) in favour of the Purchaser, if applicable.

6. REPRESENTATIONS AND WARRANTIES OF THE SELLER

The Seller represents and warrants that:

- a) The Seller is the legal and beneficial owner of the Sale Shares;
- b) The Sale Shares are free from any Encumbrance;
- c) The Seller has full authority to enter into and perform this Agreement;
- d) Execution of this Agreement does not violate any law, agreement or obligation binding on the Seller;
- e) The Sale Shares are fully paid-up and validly issued.

7. REPRESENTATIONS AND WARRANTIES OF THE PURCHASER

The Purchaser represents and warrants that:

- a) The Purchaser has full authority and capacity to enter into this Agreement;
- b) The Purchaser has sufficient funds to pay the Purchase Consideration;
- c) Execution of this Agreement does not violate any applicable law or contractual obligation.

8. COVENANTS

8.1 The Parties shall execute and deliver all such documents and perform all such acts as may be necessary to give effect to this Agreement.

8.2 The Seller shall cooperate with the Purchaser in relation to any filings or registrations required to complete the transfer.

9. INDEMNITY

9.1 The Seller shall indemnify and hold harmless the Purchaser from and against any losses, claims, liabilities, damages, costs or expenses arising out of:

- a) Any breach of the Seller's representations and warranties;

b) Any breach of the Seller's obligations under this Agreement.

9.2 The Purchaser shall indemnify and hold harmless the Seller from and against any losses arising from any breach of the Purchaser's obligations under this Agreement.

10. COSTS AND EXPENSES

Each Party shall pay their own costs in relation to preparation, negotiation and execution of this Agreement and each Party shall be responsible for the costs and expenses of their attorneys and advisers.

11. CONFIDENTIALITY OBLIGATIONS

a. The Parties agree as follows:

- (i) to keep the confidential information secret at all times;
- (ii) not to distribute, disclose, reproduce or otherwise communicate any confidential information to any person or entity other than the related parties to this Agreement;
- (iii) not to disclose the confidential information or allow any unauthorized disclosure to any third party without the prior consent of the other Party, and
- (iv) not to use the confidentiality information in whole or in part for any purpose except for the Purpose stated in this agreement.

b. The Parties agree and undertake to treat all information with respect to this Agreement as confidential and the confidential information shall be handled in a way as to prevent any unauthorized disclosure thereof.

c. Each Party undertakes to take proper and reasonable measures to ensure the confidentiality of the confidential information.

d. The provision of this clause shall not prohibit the disclosure of any information if and to the extent that:

- (i) it is required to be disclosed by any valid order of a court of competent jurisdiction or the rules of any governmental or regulatory authority or agency in which the receiving party shall notify the other Party;
- (ii) the disclosure or use is required to vest the full benefit of this Agreement;
- (iii) it is in the public domain by no default of the receiving party;
- (iv) it is disclosed to professional advisers who are also bound to ensure the confidentiality of the confidential information.

e. The receiving parties undertake that upon the execution of this Agreement any breach on their part will entitle the disclosing party to specific performance and any other form of equitable relief to enforce the provisions of this Agreement.

f. The Parties shall continue to be bound by this confidentiality obligation even after this Agreement has been terminated.

12. GOVERNING LAW

This Agreement shall be interpreted and construed in accordance with the laws of the India.

13. JURISDICTION

The Parties agree that the Indian courts shall have the exclusive jurisdiction to settle any dispute or claim in connection with this contract.

14. ASSIGNMENT

Neither of the Parties may assign nor transfer any of its rights, benefits or obligations under this Agreement.

15. ENTIRE AGREEMENT

This Agreement and any other document referred to in this Agreement, constitute the entire agreement between the Parties and supersedes any prior written or oral agreements made between them.

16. WAIVERS

Any term or provision of this Agreement may be waived in writing at any time by the Party entitled to such benefit. No delay, omission to exercise any right shall not be construed as waiver.

IN THE WITNESS WHEREOF the Parties have executed this Agreement the day and year first written above.

SIGNED by the within named Seller

Seller Name:

Address:

Signature

SIGNED by the within named Purchaser

Purchaser Name:

Address:

Signature

For (Company Name)

Name: (Authorized person)

Address:

Signature